

Separate Statement.

California Rules of Court rule 3.1345(c) sets forth the requirements for the contents of a separate statement. Plaintiff's separate statement does not conform.

Based on the procedural defects, the Court DENIES the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504118	BILLEH VS HADDAD	MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Plaintiff's unopposed Motion for Leave to File First Amended Complaint. Plaintiff shall file the First Amended Complaint within 14 days of this Order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600380	BARTELS VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court DENIES Defendant's Requests for Judicial Notice. The Court OVERRULES the demurrer as to the 1st, 3rd, 4th and 5th causes of action. The Court SUSTAINS, without leave to amend, as to the 2nd and 6th causes of action.

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (Committee For Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) The burden is on the plaintiff to sufficiently plead facts that would support an equitable tolling, which the FAC fails to do. (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.)

Here, the facts in this case began 30 years ago when Archer Road's elevation was changed, the FAC sets forth facts that could support a finding of equitable tolling based on ongoing promises by County until its counsel's letter of May 24, 2024, advised that County would no longer honor the prior promises and would not provide for public access. Accordingly, **the FAC is not barred on the grounds of statute of limitations.**

1st Cause of Action for Inverse Condemnation:

To state a claim for inverse condemnation, a plaintiff must allege that (1) a public entity, (2) has taken or damaged their property, (3) for a public use. (Simple Avo